

the twentieth century, as in the thirteenth, justice cannot be had for nothing; and the would-be litigant with a good claim but a slender purse will be well advised to acquiesce in a small loss rather than incur certainty of losing as much again in extra-judicial outlays, and risk of losing many times more in the judicial expenses of a protracted litigation. The lack of "free justice" is a reproach which the men of to-day cannot with good grace fling at the administration of John.

As the evils complained of are often exaggerated, so also are the reforms promised by this chapter of Magna Carta. John is usually held to have agreed to the abolition of payments of every sort for judicial writs and other fees of court. Justice, unlike other valuable commodities, was, it would appear, to be obtained for nothing—an ideal never yet attained in any civilized community.

Those who framed this chapter desired to secure a more reasonable measure of reform: abuses of the system were to be redressed.¹ Unfortunately, it was not easy to define abuses—to determine where legitimate payments stopped and illegitimate ones began. Prohibitive prices ought not to be charged for writs *de cursu*; but was the Crown to have no right to issue writs of grace on its own terms? Plaintiffs who had any special reason for haste frequently paid to have their suits heard quickly: was that an abuse?²

Whatever the intention may have been, the practical effect of the clause was *not* to secure the abolition of the

¹ Cf. Madox, I. 455: "By *nulli vendemus* were excluded the excessively high fines: by *nulli negabimus*, the stopping of suits or proceedings, and the denial of writs: by *nulli differemus*, such delays as were before wont to be occasioned by the counterfines of defendants (who sometimes would outbid the plaintiffs) or by the prince's will."

² Fines for this purpose were frequent under Henry II. and his sons. Madox, I. 447, cites many examples. Thus in 1166 Ralph Fitz Simon paid two marks "for speeding his right." The practice continued under Henry III. in spite of Magna Carta. Bracton's *Note-book* cites a hard case (No. 743): Henry III. was claiming prerogative wardship where it was illegal under c. 37 of Magna Carta (*q.v.*). The court might have delayed hearing the mesne lord's plea until the wardship was ended; but he paid five marks *pro festinando iudicio suo*. The fine was said to be given "willingly" (*sponte*). Did the use of this word make possible an evasion of c. 40 of the Charter?